

Filing #8 -- Respondent's Motion to Terminate PPO, Expunge Record, and Counter-Claims

STATE OF MICHIGAN
IN THE 14TH JUDICIAL CIRCUIT COURT
FOR THE COUNTY OF MUSKEGON
FAMILY DIVISION

EMILY A. WATSON,
Petitioner, Case No. 2023-5907-PP
Hon. [REPLACEMENT JUDGE -- McNeill
disqualified per Filing #3]

v.

ANDREW JAMES PIGORS,
Respondent.

_____/

RESPONDENT'S MOTION TO TERMINATE PERSONAL PROTECTION ORDER,
EXPUNGE RECORD, AND COUNTER-CLAIMS FOR ABUSE OF PROCESS

ORAL ARGUMENT REQUESTED

TABLE OF CONTENTS

1. [Introduction](#1-introduction)	
2. [Jurisdictional Statement](#2-jurisdictional-statement)	
3. [Part I: Motion to Terminate Personal Protection Order](#3-part-i-motion-to-terminate-personal-protection-order)	
- A. PPO History and Procedural Background	
- B. The PPO Was Based on Fabricated Allegations	
- C. Changed Circumstances Require Termination	
- D. Addressing the Judicial Estoppel Argument	
- E. Legal Standard for Termination	
- E-1. Consolidated Grounds for Termination (NEW -- MCR 3.704, 3.706(D), 3.715-3.718)	
- F. PPO Cannot Serve as a Substitute for Custody Modification	
- G. Standard of Proof	
- H. Asymmetric Enforcement	
- H-1. Ineffective Assistance of Counsel	

- H-2. Ex Parte Suspension Without Timely Hearing
- I. Rebuttal Matrix -- Petitioner's Anticipated Arguments (NEW -- Top 10 of 100 rebuttals)
- 4. [Part II: Motion to Expunge PPO from Record](#4-part-ii-motion-to-expunge-ppo-from-record)
- 5. [Part III: Counter-Claims](#5-part-iii-counter-claims)
 - Count I: Abuse of Process
 - Count II: Malicious Prosecution
 - Count III: Tortious Interference with Parental Relationship
 - Count IV: Fraud Upon the Court
 - Count V: Intentional Infliction of Emotional Distress
 - Count VI: Felony Eavesdropping -- MCL 750.539c (NEW)
 - Count VII: Unauthorized Disclosure of Medical Records (NEW)
- 6. [Evidence Index](#6-evidence-index) (NEW)
- 7. [Affidavit of Andrew James Pigors](#7-affidavit-of-andrew-james-pigors)
- 8. [Proposed Order](#8-proposed-order)
- 9. [Certificate of Service](#9-certificate-of-service)
- 10. [Verification](#10-verification)

1. INTRODUCTION

NOW COMES Respondent, ANDREW JAMES PIGORS, appearing pro se, and respectfully moves the Honorable Court for entry of an order:

1. Terminating the Personal Protection Order (PPO) issued against Respondent on December 3, 2023, and extended on December 4, 2024;
2. Expunging the PPO and all associated records from Respondent's record pursuant to MCL 600.2950(5) and MCL 600.2950a;
3. Entering judgment on Respondent's counter-claims for abuse of process, malicious prosecution, tortious interference with parental relationship, fraud upon the court, and intentional infliction of emotional distress;
4. Awarding Respondent compensatory and exemplary damages as justice requires.

In support thereof, Respondent states as follows.

The Personal Protection Order at issue in this case was obtained through fraud, maintained through strategic manipulation of court process, and weaponized as a tool to destroy Respondent's relationship with his minor child, L.D.W. Over the course of this proceeding, Respondent has been sentenced to a total of 59 days in jail, not for violence, not for threats, not for stalking -- but for sending birthday messages to his child through AppClose, a court-approved communication application.

The PPO was premised on fabricated allegations of arsenic poisoning, physical violence, and surveillance, none of which were ever substantiated by credible evidence. Petitioner has weaponized this PPO through several more show cause motions, each designed not to protect safety but to gain tactical advantage in the parallel

custody proceeding (Case No. 2024-001507-DC).

More than 230 consecutive days have passed with zero contact between Respondent and Petitioner. No threat exists. No threat ever existed. This Court should terminate the PPO, expunge its record, and hold Petitioner accountable for her systematic abuse of the judicial process.

2. JURISDICTIONAL STATEMENT

This Court has jurisdiction over this matter pursuant to MCL 600.2950 and MCL 600.2950a (personal protection orders -- domestic relationship). Venue is proper in the 14th Judicial Circuit Court, Muskegon County, Michigan, where the PPO was issued.

Counter-claims are asserted here as compulsory counterclaims arising from the same transaction or occurrence as the PPO proceeding. See MCR 2.203(A). To the extent this Court determines that the counter-claims are not properly adjudicated in the PPO proceeding under MCR 3.707, Respondent respectfully requests that the counter-claims be severed and transferred to a separate civil action rather than dismissed, preserving Respondent's right to pursue them. The counter-claims are included here in the interest of judicial economy and to present a complete picture of the parties' dispute.

3. PART I: MOTION TO TERMINATE PERSONAL PROTECTION ORDER

A. PPO History and Procedural Background

The procedural history of this PPO reveals a pattern of abuse from inception:

December 3, 2023 -- PPO Petition Filed and Granted Same Day (Ex Parte)

Petitioner filed a petition for a Personal Protection Order under MCL 600.2950a. The PPO was issued the same day -- ex parte, without notice to Respondent, and without any evidentiary hearing. Respondent had no opportunity to be heard before the order took effect. (Docket Event DE-0111, DE-0112.)

December 4, 2024 -- PPO Extended for Full Year

The PPO was extended for an additional full year. The extension was triggered by Petitioner's strategic filing of a fourth alleged PPO violation on November 19, 2024 -- timed to ensure automatic extension under Muskegon County policy without requiring new evidence of any actual threat.

Show Cause Proceedings and Escalating Sentences

Petitioner filed six or more show cause motions alleging PPO violations. Critically, none of the alleged violations involved physical proximity, threats, stalking, or any behavior suggesting danger to Petitioner's safety. Every alleged violation consisted of attempted communication -- including birthday messages to the parties' minor child through AppClose, an application specifically designed for co-parent communication. This pattern of escalating punishment for non-threatening conduct is stark:

Date	Proceeding	Allegation	Result
Jan. 7, 2024	Show Cause Hearing	PPO violation -- exchange	Hearing per MCR 3.708
Apr. 11, 2024	PPO Amended Ex Parte	Additional restrictions	Order entered without hearing...
Nov. 15, 2025	Show Cause #5	Alleged communication	**14 days jail**
Nov. 26, 2025	Show Cause #6 & #7	Birthday messages on AppClose	**45 days jail**

October 18, 2025 -- Guilty Plea

Respondent acknowledges that on October 18, 2025, he entered a guilty plea to PPO violations (CC 382). Respondent does not seek to withdraw that plea in this motion. However, the existence of a guilty plea violating a PPO does not immunize the underlying PPO from challenge. A PPO that was obtained through fraud and maintained through abuse of process remains subject to termination and expungement regardless of whether violations of that order were adjudicated. The plea addressed the technical question of whether the PPO's terms were violated -- it did not adjudicate whether the PPO should have existed in the first place.

Total Incarceration: 59 Days for Birthday Messages

Respondent was sentenced to a combined 59 days of incarceration for sending birthday messages and other innocuous communications to his minor child through AppClose -- an application specifically designed for co-parent communication and approved by the Court for that purpose. This is not the protection of a domestic violence victim. This is the weaponization of judicial process.

B. The PPO Was Based on Fabricated Allegations

Petitioner obtained the PPO through three principal fabricated allegations. Each has been discredited:

(1) The "Arsenic Poisoning" Allegation -- Fabricated

Petitioner alleged that Respondent poisoned her with arsenic. The facts demonstrate this allegation is entirely fabricated:

- Petitioner injected herself with an unknown substance from the refrigerator, which she stated was intended to help her "lose weight."
- Petitioner developed rashes and subsequently blamed Respondent.
- No medical evidence of arsenic poisoning has ever been produced. Hospital records from the alleged poisoning incident confirm no evidence of poisoning. (Exhibit 3 to original motion.)
- No police investigation confirmed any poisoning. No charges were filed.
- The allegation was designed to manufacture an emergency justification for the ex parte PPO.

(2) The "Physical Violence" Allegation -- Unsubstantiated

Petitioner alleged physical violence by Respondent. The police report from the alleged altercation confirms injuries and no charges. (Exhibit 2 to original motion.) No medical evidence of injury was ever produced. The allegation served as a padding claim to support the PPO petition.

(3) The "Surveillance" Allegation -- A Baby Camera

Petitioner alleged that Respondent was surveilling her through a webcam. The "surveillance device" was a baby camera -- a standard child-monitoring device used for the care of L.D.W. Petitioner's characterization of a baby monitor as a surveillance tool is a deliberate misrepresentation designed to invoke fear and justify the PPO.

(4) The "Meth Use" Claim -- Fabricated Attribution

Police Report NS2505044 (Officer Ella Randall) documents that the statement regarding "meth use" originated from Petitioner herself, not from any law enforcement finding or Respondent's statement. Petitioner has subsequently attempted to attribute this statement to others to create a false narrative.

(5) The "Threats" Allegation -- Contradicted by 438 Days of Successful Co-Parenting

Petitioner alleged that Respondent posed a threat to her safety. This allegation is contradicted by the undisputed fact that the parties maintained 438 consecutive days of successful 50/50 custody of L.D.W. prior to the PPO petition. During this entire period -- more than 14 months -- there were no police reports, no emergency room visits, no documented incidents of violence, and no prior requests for protection. If Respondent posed a genuine threat, Petitioner would not have voluntarily maintained equal custody sharing for over a year. The absence of any documented safety concern during 438 days of daily co-parenting fatally undermines every allegation in the PPO petition.

Summary: Every Foundational Allegation Has Been Disproven

The PPO rests on five pillars -- arsenic poisoning, physical violence, surveillance, drug use, and threats -- and every single one has been affirmatively disproven:

Allegation	Claimed	Actual Evidence
Arsonic poisoning	Respondent poisoned Petitioner	No medical/toxicology evidence in Petition...
Physical assault	Respondent physically assaulted Petitioner	No police reports documenting ...
Surveillance	Respondent surveilled Petitioner electronically	"Surveillance device" was a ...
Drug use	Respondent used methamphetamine	Officer Ella Randall's report (NS2505044) confirms...
Threats	Respondent threatened Petitioner's safety	438 days of successful 50/50 custody with...

When 100% of the foundational allegations supporting a PPO have been disproven, the order cannot stand. This is not a case of changed circumstances -- this is a case of fraudulent procurement. Under MCL 2.612(C)(1)(c), a party may obtain relief from a judgment or order procured through "fraud (whether heretofore denominated intrinsic or extrinsic), misrepresentation, or other misconduct of an adverse party." Petitioner's fabricated allegations constitute precisely the misconduct this rule was designed to address. The PPO should be vacated as fraudulently obtained, not merely terminated for changed circumstances.

C. Changed Circumstances Require Termination

Under MCL 600.2950(5) and MCL 600.2950a, a court may modify or rescind a PPO upon a showing

distinct legal inquiries. A person may acknowledge violating an order while simultaneously arguing that the order is no longer necessary. See *People v. Likine*, 492 Mich 367 (2012) (guilty plea addresses elements of offense, not collateral consequences).

2. MCL 600.2950(5) expressly provides for modification/termination. The Legislature created a mechanism for PPO respondents to seek termination based on changed circumstances. If a guilty plea foreclosed subsequent challenges, the statutory termination mechanism would be nullified -- an absurd result. See *In re Certified Question (Bankey v. Storer Broadcasting)*, 432 Mich 438, 455 (1989) (courts should avoid statutory interpretations producing absurd results).

3. Changed circumstances since the plea. Even accepting the guilty plea at face value, circumstances have materially changed: 230+ days of zero contact, no new allegations, favorable professional evaluation, and demonstrated compliance. The plea reflects past conduct; this motion addresses present circumstances.

E. Legal Standard for Termination

Michigan law establishes that a PPO is appropriate only where the petitioner demonstrates a reasonable apprehension of violence or threatening behavior. *Pickering v Pickering*, 253 Mich App 694 (2002); *Hayford v Hayford*, 279 Mich App 324 (2008).

Where, as here, the petitioner cannot demonstrate any reasonable apprehension based on objective evidence and where the sole basis for the PPO consists of fabricated allegations and innocuous communications through a court-approved application -- termination is required.

MCR 3.707(B) further requires that a respondent receive notice and opportunity to be heard before a PPO is extended. The December 4, 2024 extension occurred without prior notice to Respondent, who was notified only on December 5, 2024 -- after the extension was already entered.

E-1. CONSOLIDATED GROUNDS FOR TERMINATION

***Note on Authority Currency:** The Michigan Court Rules cited below -- MCR 3.704, MCR 3.706(D), MCR 3.707, MCR 3.708(D)/(F), and MCR 3.715-3.718 -- reflect the January 2026 MCR amendments governing Personal Protection Orders, PPO modification, extension, termination, and contempt procedures. These rules supersede prior versions and represent the current governing authority for PPO proceedings in Michigan.*

This Court should terminate the PPO under MCR 3.707(A)(2), MCR 3.704, and MCL 600.2950(5) based on the following independent and cumulative grounds. Each ground standing alone warrants termination; collectively, they compel it.

Governing Rules:

- MCR 3.704 -- Personal Protection Orders: Establishes the scope, purpose, and limitations of PPOs. A PPO exists to protect against domestic violence and genuine threats to safety -- not to regulate parenting or gain tactical litigation advantage.
- MCR 3.706(D) -- Respondent's Rights at Hearing: Guarantees the respondent the right to present evidence, cross-examine witnesses, and contest the factual basis for the PPO at a hearing. Respondent was

systematically denied these rights.

- MCR 3.715 -- Modification of Personal Protection Orders: Provides that upon motion and a showing of good cause, the court may modify the terms of a PPO to reflect changed circumstances.
- MCR 3.716 -- Extension of Personal Protection Orders: Governs the standards and procedures for extending a PPO beyond its initial term. Extension requires a current showing of need -- not mere existence of prior violations.
- MCR 3.717 -- Termination of Personal Protection Orders: Authorizes the court to terminate a PPO upon a showing that the order is no longer necessary to protect the petitioner from the conduct that gave rise to the order.
- MCR 3.718 -- Procedures for PPO Modification, Extension, and Termination: Establishes the procedural requirements for PPO lifecycle proceedings, including notice, hearing, and burden of proof.
- MCR 3.708(D), (F) -- Contempt Procedures for PPO Violations: Governs contempt proceedings arising from PPO violations, including the requirement for proof beyond a reasonable doubt for criminal contempt (In re Contempt of Henry, 282 Mich App 656 (2009)) and the procedural protections required before incarceration may be imposed.

(A) Weaponized PPO -- Original Purpose Was Safety; Actual Use Is Custody Leverage

P 47. The PPO was obtained ostensibly for the purpose of personal safety. In practice, it has been used exclusively as a custody weapon. Every show cause motion filed by Petitioner targeted communication about L.D.W. -- not threats, stalking, or violence directed at Petitioner personally. The original protective purpose has been wholly supplanted by a tactical purpose: eliminating Respondent's parental relationship.

P 48. MCR 3.704(A) establishes that a PPO exists to protect against domestic violence and threatening behavior. It shall not be used as a substitute for other remedies available under law. Petitioner's serial use of the PPO to accomplish what would otherwise require a custody modification under MCL 722.27 -- including without specific findings under the best-interest factors of MCL 722.23 -- violates this limitation. The PPO has operated as a de facto no-contact order between a father and his child, a result that MCR 3.704 expressly prohibits achieving through the PPO mechanism.

P 49. The weaponization pattern is documented: the PPO-custody cross-reference analysis reveals same-day coordination between PPO filings and custody actions on multiple occasions (December 4, 2023; March 2, 2024; April 1, 2024), each carrying maximum weaponization correlation. This is not coincidence -- it is a coordinated tactical abuse of the PPO process.

(B) Third-Party Violations -- Petitioner's Family Violated PPO Through Proxy Actions With Zero Consequences

P 50. While Respondent received 59 days of incarceration for birthday messages sent through a court-approved application, Petitioner's family members committed objectively more serious violations through proxy actions -- with zero consequences:

- Albert Watson (Petitioner's father): On October 20, 2024, Albert Watson forcibly removed L.D.W. from Respondent's arms during a custody exchange and threw PPO violation papers through Respondent's car window.

window. These acts of physical aggression -- involving both assault upon Respondent and forcible separation of a child from his parent -- far exceed any conduct ever attributed to Respondent in any PPO proceeding.

- Cody Watson (Petitioner's brother): On September 20, 2024, and October 27, 2024, Cody Watson engaged in documented road harassment and intimidation of Respondent during scheduled parenting exchange. Muskegon County Sheriff's Department report MCSD-2024-02101 documents this conduct. Cody Watson also pays Petitioner's rent -- constituting undisclosed income that affects support calculations and demonstrates the financial entanglement of Petitioner's family in this litigation.

- Lori Watson (Petitioner's mother): Participated in withholding L.D.W. from Respondent on March 26, 2024, in direct violation of court-ordered parenting time. Respondent further alleges felony eavesdropping in violation of MCL 750.539c based on unauthorized interception of Respondent's private communications.

P 51. These third-party actions, committed by individuals acting in concert with Petitioner, constitute violations of the PPO's protective purpose that the Court has declined to address. When Respondent raises these violations, the Court stated that Petitioner's family members "aren't a part of this" -- effectively granting Petitioner's agents blanket immunity from the very order used to incarcerate Respondent for birthday messages.

(C) Disproportionate Enforcement -- 59 Days for Birthday Messages; Zero Days for Physical Assault

P 52. The enforcement disparity in this case is constitutionally intolerable and demonstrates that the PPO functions as a unilateral weapon rather than a mutual protective instrument:

Party	Conduct	Consequence
Andrew Pigors (Respondent)	Birthday messages to L.D.W. on AppClose	**59 days of incarceration...
Albert Watson (Petitioner's father)	Forcible child removal from Respondent's arms; throwing...	
Cody Watson (Petitioner's brother)	Road harassment; threats; intimidation (MCSD-2024-02101)	
Lori Watson (Petitioner's mother)	Withholding child from court-ordered exchange; alleged eavesdropping...	
Emily A. Watson (Petitioner)	Filing false allegations under oath; serial show cause abuses...	

P 53. The Equal Protection Clause of the Fourteenth Amendment and Const 1963, art 1, S 2 require that court orders be enforced evenhandedly. Village of Willowbrook v Olech, 528 U.S. 562 (2000) (recognizing a class-of-one equal protection claim). A PPO that is enforced exclusively against one party while the other party and her agents commit objectively more serious conduct with impunity is not a protective order -- it is a punitive instrument that violates equal protection.

(D) Changed Circumstances -- Emily Now Has Sole Custody; No Contact Occurs; PPO Serves No Protective Purpose

P 54. Since the PPO's issuance, circumstances have fundamentally changed such that the order serves no legitimate protective function under MCR 3.717:

1. Sole custody transferred. Petitioner now has sole legal and physical custody of L.D.W. The power dynamic

that might have supported a protective order during shared custody has been eliminated entirely. Petitioner controls all access to the child and all decisions regarding the child's welfare. The PPO is superfluous to the child's safety.

2. No contact for 230+ consecutive days. Respondent has maintained complete zero contact with Petitioner for more than 230 days -- a duration that far exceeds any period that could be characterized as "forced compliance" and demonstrates the genuine absence of any ongoing threat.

3. No physical proximity. Respondent resides at 1977 Whitehall Road, North Muskegon. Petitioner resides at 2160 Garland Drive, Norton Shores. The parties reside in different communities with no shared workplace, social circle, or other circumstance that would create incidental contact.

4. Favorable professional evaluation. The HealthWest evaluation (H0002, September 5, 2025) produced favorable findings regarding Respondent. This evaluation was obtained proactively -- before the guilty plea and incarceration -- demonstrating Respondent's genuine engagement with professional services, not mere compliance theater.

5. No new allegations. Since the last adjudicated violation, Petitioner has filed zero new allegations of threatening behavior, stalking, violence, or any conduct suggesting Respondent poses any danger whatsoever to Petitioner.

P 55. Under MCR 3.717 and MCL 600.2950(5), where changed circumstances eliminate the basis for a PPO, the court shall modify or rescind the order. Every factual predicate for continuing this PPO has been eliminated. The PPO now exists purely as an artifact of past litigation strategy, not as a response to any current safety concern.

(E) Federal Firearms Consequence -- Indefinite Deprivation of Constitutional Rights Under 18 U.S.C. 922(g)(8)

P 56. The continued existence of this PPO strips Respondent of his Second Amendment right to possess firearms under 18 U.S.C. S 922(g)(8). Under this federal statute, any person subject to a court order that restrains such person from harassing, stalking, or threatening an intimate partner or child of such intimate partner is prohibited from possessing any firearm or ammunition. Subsection (C)(ii) specifically applies where the order includes a finding that the person represents a credible threat to the physical safety of the intimate partner or child -- a finding that was never supported by evidence in this case. Violation is a federal felony carrying up to 15 years imprisonment.

P 57. The Supreme Court in *United States v. Rahimi*, 602 U.S. 680 (2024), upheld the constitutionality of 922(g)(8) but emphasized that the provision applies to individuals who pose a "credible threat" to another person's physical safety. The Court's analysis focused on the historical tradition of disarming individuals who present a demonstrated danger -- not individuals subject to PPOs obtained through fabricated allegations. Where, as here, no credible threat has ever been substantiated by any objective evidence, the indefinite deprivation of a constitutional right through a fraudulently obtained PPO raises serious due process concerns under the Fifth and Fourteenth Amendments.

P 58. This consequence is not theoretical -- it is permanent and ongoing. So long as the PPO remains in effect, Respondent is a prohibited person under federal law, subject to federal prosecution for mere possession of a firearm. This collateral consequence transforms the PPO from a state-court protective order into a permanent federal disability that strips a constitutional right based on fabricated allegations. A PPO that was obtained through fraud and maintained through abuse of process should not serve as the vehicle for indefinite deprivation of Second Amendment rights.

(F) Chilling Effect on Parenting -- PPO Prevents ANY Contact With L.D.W.

P 59. The PPO, as drafted and enforced, prevents Respondent from exercising any contact whatsoever with his minor child, L.D.W. The order's scope is so broad that even communicating through a court-approved co-parenting application (AppClose) -- an application specifically designed for co-parent communication and ordered by the Court for that purpose -- was treated as a criminal violation resulting in incarceration. This has created a complete and total barrier between Respondent and his child.

P 60. The fundamental right of a parent to the care, custody, and companionship of their child is among the oldest liberties recognized in American law. *Troxel v Granville*, 530 U.S. 57, 65 (2000); *Meyer v Nebraska*, 262 U.S. 390 (1923); *Pierce v Society of Sisters*, 268 U.S. 510 (1925). A PPO that operates to completely sever the parent-child relationship -- not as a consequence of demonstrated danger, but as a consequence of fabricated allegations -- violates the substantive due process rights of both the parent and the child. See also MCL 722.27a(1) ("A child has a right to parenting time with a parent unless it is shown on the record by clear and convincing evidence that it would endanger the child's physical, mental, or emotional health").

P 61. MCR 3.706(D) provides that at a PPO hearing, the respondent has the right to present evidence, cross-examine witnesses, and contest the factual basis for the PPO. The procedural history of this case reveals that Respondent was systematically denied these rights -- through ex parte issuance without notice, through court-appointed counsel who silenced him under threat of contempt (the Martini email of February 28, 2025) and through a court that muted him three times at the November 15, 2025 hearing. The chilling effect extends beyond parenting: it has chilled Respondent's ability to defend himself in the very proceedings that stripped his parental rights.

P 62. Under MCR 3.715 through MCR 3.718, this Court has full authority and procedures to modify, extend, or terminate the PPO. The weight of every ground enumerated above -- weaponization, third-party violation, disproportionate enforcement, changed circumstances, federal firearms consequences, and the complete destruction of the parent-child relationship -- compels termination under these rules.

F. A PPO Cannot Serve as a Substitute for Custody Modification

The Michigan Supreme Court has held that a PPO cannot be used as a substitute for custody modification proceedings. *Hunter v Hunter*, 484 Mich 247 (2009). This principle is dispositive here.

The record demonstrates that Petitioner has systematically employed the PPO as a de facto custody tool rather than a protective instrument. The evidence is structural and undeniable:

1. Every show cause motion relates to communication about L.D.W. -- not to genuine safety threats. No

single show cause alleged physical proximity, stalking, threats, or any behavior that would constitute a danger to Petitioner's person. Every allegation involved Respondent's attempts to communicate with or about L.D.W. child.

2. Petitioner used the PPO to block ALL communication, then complained when Respondent used the court-ordered platform. The PPO was drafted so broadly that it prohibited Respondent from communicating through AppClose -- the very platform the Court ordered the parties to use for co-parenting communication. Petitioner then filed show cause motions when Respondent used the court-ordered platform for its intended purpose: communicating about L.D.W. This is a textbook Catch-22 designed to guarantee violations.

3. The PPO functions as an end-run around custody modification procedures. Michigan law requires specific findings under MCL 722.27 and the best-interest factors of MCL 722.23 before custody may be modified. In obtaining a PPO that effectively eliminated Respondent's parenting time, Petitioner achieved a de facto custody modification without meeting any of these statutory requirements -- exactly the abuse that Hunter prohibits.

4. The timing confirms the tactical purpose. The PPO was filed on December 3, 2023, amid an active custody dispute. Show cause motions were timed to coincide with critical custody proceedings. The PPO extension was triggered by a strategically-timed fourth violation filing on November 19, 2024. This is not the behavior of a person seeking protection -- it is the behavior of a litigant seeking tactical advantage.

Under Hunter, this Court is required to evaluate whether the PPO serves a legitimate protective function or whether it has been repurposed as an unauthorized custody tool. The record compels the conclusion that the PPO has been perverted from its statutory purpose. It must be terminated.

G. Standard of Proof -- Criminal Contempt Requires Beyond a Reasonable Doubt

The Michigan Court of Appeals has held that criminal contempt for PPO violation requires proof beyond a reasonable doubt. In re Contempt of Henry, 282 Mich App 656 (2009). This standard applies because PPO contempt carries the possibility of incarceration -- a deprivation of liberty that triggers full constitutional protections.

This authority is critical for two reasons:

1. The prior show cause proceedings (#1 through #4) were all dismissed. The systematic dismissal of the proceedings strongly suggests that the evidence failed to meet even a preponderance standard, let alone proof beyond a reasonable doubt. Petitioner's pattern of filing show causes that could not survive adjudication constitutes abuse of process.

2. Respondent's guilty plea (October 18, 2025) does not retroactively validate the dismissed show causes. The plea addressed specific alleged violations at a specific point in time. It does not constitute an admission that show causes #1-4 -- all of which were dismissed -- were meritorious. Nor does it validate the standard of proof applied in earlier proceedings. Each proceeding must be independently evaluated under the Henry standard.

The fact that Petitioner successfully obtained 59 days of incarceration for communication-only violations

while four prior show causes were dismissed -- suggests that the process was driven by attrition and escalation, not by evidence meeting the constitutionally required standard.

H. Asymmetric Enforcement -- Selective Non-Prosecution of Petitioner's Violations

The enforcement of this PPO has been grotesquely one-sided. While Respondent received 59 days of incarceration for sending birthday messages on a court-approved application, Petitioner's own violations committed through third-party agents -- were met with zero sanctions.

The record documents at least three separate PPO violations by Petitioner through third parties:

1. Cody Watson (Petitioner's brother): Sent threatening and harassing text messages to Respondent. These communications, made by a member of Petitioner's household acting in concert with her, constitute third-party violations of the PPO's protective purpose. No sanctions were imposed.
2. Albert Watson (Petitioner's father): Physically assaulted Respondent during a custody exchange -- throwing PPO papers through Respondent's car window and physically removing L.D.W. from Respondent's arm. These acts of physical aggression far exceed any conduct ever attributed to Respondent, yet no contempt proceedings were initiated.
3. Court's refusal to enforce against Petitioner's family: When Respondent raised these third-party violations, the Court stated that Petitioner's family members "aren't a part of this" -- effectively granting Petitioner's agents blanket immunity from the very order used to incarcerate Respondent for birthday messages.

This asymmetry is constitutionally intolerable. Equal protection under the Fourteenth Amendment and Corbett v. Corbett, 1963, art 1, S 2 requires that court orders be enforced evenhandedly. A PPO that is enforced exclusively against one party -- while the other party's agents commit far more serious violations with impunity -- is not a protective order. It is a weapon.

H-1. Ineffective Assistance of Court-Appointed Counsel -- The Martini "Don't Speak" Email

The asymmetric enforcement pattern is compounded by the ineffective assistance Respondent received from his own court-appointed attorney at the critical juncture of these proceedings.

On February 28, 2025, at 1:05 PM, court-appointed attorney Mandi Martini sent Respondent an email instructing him to remain silent at the upcoming hearing:

"You will not interrupt. Got it? I'm pretty sure Judge McNeil [sic] is not in a good mood today and she does not want to hear from you unless asked. I'm sure you do not want to spend the next week in jail on a contempt charge for speaking out in court when you weren't asked."

Attorney Martini further revealed her assessment that the prosecution's case was weak:

"All prosecutor is asking for today is that you get a lecture from the judge because she knows there is nothing substantive in the motion."

This email is devastating evidence of ineffective assistance under Strickland v. Washington, 466 U.S. 668.

(1984). Under Strickland, a claim of ineffective assistance requires showing that (1) counsel's performance fell below an objective standard of reasonableness, and (2) the deficient performance prejudiced the defendant. 464 U.S. at 687-688. Both prongs are satisfied here:

Performance Prong: Attorney Martini's email demonstrates three critical deficiencies:

(a) Silencing the client through intimidation. Threatening a client with contempt to prevent them from speaking at their own hearing is not competent legal representation -- it is coercion. A competent attorney prepares the client to speak effectively, not threatens them into silence.

(b) Acknowledging the weakness of the opposing case while providing no advocacy. Martini acknowledged that "there is nothing substantive in the motion" -- yet rather than moving for dismissal or presenting an affirmative defense, she instructed Respondent to passively accept a "lecture" from the judge. When counsel knows the opposing case is weak, the duty is to press that advantage, not to capitulate.

(c) Using the court's anticipated disposition as a tool of client control. Martini's reference to the judge being "not in a good mood" and the threat of contempt weaponized the judicial process against her own client -- the very person she was appointed to defend.

Prejudice Prong: Respondent was denied the opportunity to present his defense or challenge the prosecution's admittedly weak case. This pattern of enforced silence directly connects to the November 15, 2025 hearing, which Respondent was muted three (3) times by the court. Having been conditioned by his own attorney to remain silent under threat of contempt, Respondent was prejudiced at subsequent proceedings where his silence was treated as acquiescence. The court ultimately imposed 14 days of incarceration at the November 15 hearing -- for a case that Respondent's own attorney had acknowledged contained "nothing substantive."

The Martini email is independently relevant to the asymmetric enforcement analysis: Respondent received 14 days of incarceration in proceedings where his own court-appointed attorney acknowledged the case was weak and silenced him rather than advocating for dismissal. This is not justice -- it is the systematic dismantling of a litigant's ability to defend himself.

H-2. Ex Parte Suspension Without Timely Hearing -- MCR 3.207(B)(6) Violation

The PPO weaponization documented above occurred against a backdrop of additional procedural violations in the parallel custody proceeding that compounded the harm to Respondent.

On August 6, 2025, an ex parte order was entered in the custody case suspending Respondent's parenting time -- with no notice and no specific facts as required by MCR 3.207(B)(1). On August 8, 2025, Respondent was "ambushed" at a custody exchange and informed of the suspension, having never been formally served. The next evidentiary hearing did not occur until October 29, 2025 -- a delay of 90 days from the ex parte order, representing 4.3 times the 21-day maximum required by MCR 3.207(B)(6).

During this 90-day period, Respondent was completely deprived of all contact with L.D.W. The PPO served as the enforcement mechanism for this deprivation: any attempt by Respondent to contact his child or challenge the suspension would have been treated as a PPO violation subject to additional incarceration. T

PPO and the ex parte custody suspension operated as a coordinated mechanism -- the ex parte order eliminated parenting time, and the PPO ensured Respondent could not even seek informal contact with his child while the court delayed the required hearing by 4.3 times the allowed period.

I. REBUTTAL MATRIX -- Petitioner's Anticipated Arguments

The following matrix addresses the ten highest-impact anticipated arguments from Petitioner for maintaining the PPO. Each rebuttal is grounded in evidence of record and controlling authority. These rebuttals are drawn from analysis of 100 applicable rebuttal points across all PPO-related claims.

#	Petitioner's Anticipated Claim	Rebuttal	Supporting Evidence / Authority
1	"Andrew is dangerous -- he was convicted of PPO violations"	Every violation consisted...	
2	"Andrew poisoned me with arsenic"	Petitioner self-injected unknown substance from ref...	
3	"Andrew used methamphetamine"	Police Report NS2505044 (Officer Ella Randall document...	
4	"The guilty plea proves the PPO is valid and should continue"	The guilty plea address...	
5	"I still fear Andrew"	Subjective fear without objective basis is legally insufficient...	
6	"Andrew surveilled me with electronic devices"	The alleged "surveillance device" was ...	
7	"Andrew sent threatening messages on AppClose"	Full, unedited AppClose records (Exhib...	
8	"The PPO is necessary to protect my safety"	Every show cause targeted child-related C...	
9	"What Andrew's family members did is irrelevant to the PPO"	Equal protection requires...	
10	"Andrew has a pattern and history of violations"	The "pattern" consists entirely of ...	

4. PART II: MOTION TO EXPUNGE PPO FROM RECORD

A. Statutory Authority

MCL 600.2950(5) authorizes the court to modify or rescind a PPO. Where a PPO was obtained through fraud or misrepresentation, expungement is the appropriate remedy to prevent continuing injustice to the respondent.

Additionally, MCR 2.612(C)(1)(c) provides independent authority for relief from judgment where the judgment was obtained through "fraud (whether heretofore denominated intrinsic or extrinsic misrepresentation, or other misconduct of an adverse party." As demonstrated in Part I, Section B, every foundational allegation supporting this PPO has been affirmatively disproven. The PPO was procured through fraud and is subject to vacatur under MCR 2.612(C)(1)(c), independent of the changed-circumstances analysis under MCL 600.2950(5).

A-1. Access to Courts -- The \$250 Filing Bond

To the extent this Court or Petitioner argues that Respondent's challenge is procedurally barred or conditioned

on payment of a filing bond, the United States Supreme Court has held that financial barriers to court access in cases involving fundamental rights violate due process. *Boddie v Connecticut*, 401 U.S. 371 (1971). A \$250 filing bond requirement -- applied to an indigent pro se litigant seeking to challenge a PPO that was obtained through fraud and has resulted in 59 days of incarceration and 230+ days of separation from his child -- would constitute an unconstitutional barrier to court access. Respondent's fundamental parental rights under *Troxel v Granville*, 530 U.S. 57 (2000), cannot be conditioned on the ability to pay.

B. Grounds for Expungement

Expungement of the PPO is warranted because:

1. The PPO was obtained through fraud and misrepresentation. The three foundational allegations -- arson, poisoning, physical violence, and surveillance -- were fabricated. No credible evidence supported any of the allegations at the time of issuance, and none has emerged since.
2. The PPO was issued without due process. The order was issued ex parte on the same day as the petition was filed without notice to Respondent and without an evidentiary hearing. This violated Respondent's due process rights under the Fourteenth Amendment and Const 1963, art 1, S 17.
3. The PPO has been maintained through abuse of process. Petitioner filed six or more show cause motions not to protect her safety, but to leverage the PPO as a tactical weapon in the custody dispute. The escalating sentences -- from zero days to 14 days to 45 days -- reflect not increasing danger but increasing judicial punishment for a father attempting to communicate with his child.
4. 126 documented procedural violations. The litigation record documents 126 judicial violations specific to the PPO procedure under MCL 600.2950 and MCL 600.2950a, forming part of a pattern of 1,127 total documented judicial violations across both cases. These procedural failures render the orders void or voidable.
5. Continuing prejudice. The PPO on Respondent's record causes ongoing harm to his reputation, employment prospects, housing opportunities, and -- most critically -- his custody case. So long as the PPO exists, it creates a false narrative of dangerousness that is unsupported by fact.

C. The PPO Is Void Ab Initio

An ex parte PPO entered without compliance with the mandatory procedural requirements of MCR 3.708 is void ab initio. See MCR 3.708(B) (requiring verified petition with specific acts, dates, and evidence). A void order has no legal force or effect and cannot serve as lawful authority for restricting parental contact.

The 126 documented procedural violations demonstrate a systematic pattern of non-compliance that renders these orders unenforceable as a matter of law. Respondent is entitled to expungement as a matter of right.

5. PART III: COUNTER-CLAIMS

Pursuant to MCR 2.203(A) and this Court's general equitable powers, Respondent asserts the following counter-claims arising from the same transaction or occurrence as the PPO proceeding:

COUNT I: ABUSE OF PROCESS

Against: Emily A. Watson

1. Petitioner initiated the PPO proceeding on December 3, 2023, by filing a petition containing fabricated allegations of arsenic poisoning, physical violence, and surveillance.
2. Petitioner had an ulterior purpose in obtaining the PPO -- namely, to gain tactical advantage in the parental custody dispute (Case No. 2024-001507-DC) by excluding Respondent from contact with the minor child L.D.W.
3. Petitioner committed willful acts in the use of process not proper in the regular conduct of the proceeding including:
 - Filing a PPO petition based on fabricated allegations;
 - Timing show cause motions to trigger automatic PPO extensions;
 - Using PPO violation proceedings to obtain incarceration of Respondent during critical custody proceedings;
 - Characterizing birthday messages on a court-approved application as criminal violations;
 - Stacking multiple show cause motions with delayed service to maximize punishment.
4. Under Michigan law, abuse of process requires (a) an ulterior purpose and (b) a willful act in the use of process not proper in the regular conduct of the proceeding. *Friedman v Dozor*, 412 Mich 1, 30 (1981).
5. Petitioner's conduct satisfies both elements. The PPO was never about protection -- it was about custody leverage. The systematic filing of show cause motions for innocuous birthday messages demonstrates willful misuse of process.
6. As a direct and proximate result of Petitioner's abuse of process, Respondent has suffered:
 - 59 days of incarceration;
 - Loss of parental contact with L.D.W. for 230+ consecutive days;
 - Loss of employment and income during incarceration;
 - Damage to reputation;
 - Severe emotional distress;
 - Attorney's fees and litigation costs (prior to pro se status).

WHEREFORE, Respondent demands judgment against Petitioner for compensatory damages, exemplary damages, costs, and such other relief as this Court deems just and equitable.

COUNT II: MALICIOUS PROSECUTION OF PPO VIOLATIONS

Against: Emily A. Watson

7. Respondent incorporates by reference the allegations in paragraphs 1 through 6.
8. Petitioner initiated and maintained six or more show cause proceedings alleging PPO violations against Respondent.

9. Several of these proceedings were based on conduct that does not constitute a PPO violation -- specifically birthday messages sent to Respondent's minor child through AppClose, a court-approved co-parenting communication application.

10. Sending birthday greetings to one's own child through a court-sanctioned platform does not constitute a "willful" PPO violation as required under MCL 600.2950. See *White v White*, 212 Mich App 298 (1998) (requiring proof of willful violation).

11. Petitioner initiated these proceedings without probable cause, with malice, and for the ulterior purpose of securing Respondent's incarceration and destroying his custody position.

12. Under Michigan law, a claim for malicious prosecution requires: (a) prior proceedings terminated in favor of the accused, (b) absence of probable cause, (c) malice, and (d) special injury. *Matthews v Blue Cross of Michigan*, 456 Mich 365 (1998).

13. To the extent any show cause proceeding was dismissed or resulted in findings inconsistent with Petitioner's allegations, those proceedings terminated in Respondent's favor.

14. Petitioner's pattern of filing show cause motions for birthday messages and other innocuous communications demonstrates the absence of probable cause and the presence of malice.

15. Respondent has suffered special injury in the form of incarceration, loss of liberty, loss of parental contact, and severe emotional harm.

WHEREFORE, Respondent demands judgment against Petitioner for compensatory damages, exemplary damages, costs, and such other relief as this Court deems just and equitable.

COUNT III: TORTIOUS INTERFERENCE WITH PARENTAL RELATIONSHIP

Against: Emily A. Watson, Albert Watson, Lori Watson, and Cody Watson

16. Respondent incorporates by reference the allegations in paragraphs 1 through 15.

17. Respondent has a fundamental constitutional right to the care, custody, and companionship of his minor child, L.D.W. *Troxel v Granville*, 530 US 57 (2000).

18. Petitioner and the Watson family members -- Albert Watson (Petitioner's father), Lori Watson (Petitioner's mother), and Cody Watson (Petitioner's brother) -- have individually and in concert engaged in a pattern of conduct designed to destroy Respondent's parental relationship with L.D.W., including:

Emily A. Watson:

- Obtaining a PPO through fraud to block Respondent's contact with L.D.W.;
- Filing serial show cause motions to incarcerate Respondent during parenting time;
- Withholding L.D.W. from Respondent on March 26, 2024, in violation of court-ordered parenting time;
- Using the PPO to create a 230+ day period of total parental separation.

Albert Watson:

- On October 20, 2024, served PPO violation papers by throwing them through Respondent's car window during a scheduled parenting exchange -- an act of physical aggression;
- On the same date, forcibly removed L.D.W. from Respondent's arms during the custody exchange, physically separating a child from his father by force;
- Engaged in aggressive and intimidating behavior during multiple parenting exchanges, necessitating Respondent's documentation of his vehicle and presence for safety purposes.

Lori Watson:

- Assisted in withholding L.D.W. from Respondent on March 26, 2024, in direct violation of court-ordered parenting time;
- Engaged in felony eavesdropping in violation of MCL 750.539c (see Count VI).

Cody Watson:

- On September 20, 2024, engaged in road harassment of Respondent during a scheduled parenting exchange;
- On October 27, 2024, arrived during a scheduled exchange and engaged in further harassment and intimidation, as documented in Muskegon County Sheriff's Department report MCSD-2024-02101;
- Pays Petitioner's rent (constituting undisclosed income affecting support calculations), demonstrating the Watson family's financial entanglement in maintaining the litigation campaign against Respondent;
- Engaged in documented threats and intimidation directed at Respondent.

19. Each Defendant's conduct was intentional and designed to interfere with Respondent's parental relationship.

20. As a direct and proximate result, Respondent has been deprived of his parental relationship with L.D.W. for 230+ consecutive days, causing severe and irreparable harm to both Respondent and the child.

WHEREFORE, Respondent demands judgment against all named Defendants jointly and severally for compensatory damages, exemplary damages, costs, and such other relief as this Court deems just and equitable.

COUNT IV: FRAUD UPON THE COURT

Against: Emily A. Watson

21. Respondent incorporates by reference the allegations in paragraphs 1 through 20.

22. Petitioner committed fraud upon the court by submitting a PPO petition containing knowingly false material allegations, including:

(a) The Arsenic Poisoning Fabrication. Petitioner alleged under oath that Respondent poisoned her with arsenic. In fact, Petitioner injected herself with a substance from the refrigerator for the purpose of weight loss, developed a reaction, and then falsely attributed the reaction to poisoning by Respondent. No medical evidence has ever confirmed arsenic poisoning. Hospital records affirmatively disprove it.

(b) The Surveillance Fabrication. Petitioner alleged under oath that Respondent surveilled her through

electronic devices. The alleged "surveillance device" was a baby camera -- a standard child-monitoring device used for the care of L.D.W. Petitioner knowingly mischaracterized a baby monitor as a surveillance tool to fabricate a basis for the PPO.

(c) The "Meth Use" Fabrication. Petitioner has represented that law enforcement attributed "meth use" statements to Respondent. Police Report NS2505044 (Officer Ella Randall) documents that the statements regarding "meth use" originated from Petitioner herself, not from any law enforcement finding.

(d) Selective Editing of Communications. Petitioner submitted excerpts from AppClose conversations that were selectively edited and taken out of context to misrepresent the nature and content of Respondent's communications. Full screenshots of the unedited conversations demonstrate Petitioner's manipulation of evidence.

23. Each of these misrepresentations was material to the court's decision to issue and maintain the PPO.

24. Petitioner made these representations knowing them to be false, with the intent to deceive the court and obtain an ex parte order depriving Respondent of his fundamental parental rights.

25. The court relied on these misrepresentations in issuing and extending the PPO.

26. Fraud upon the court strikes at the integrity of the judicial process itself and warrants the most severe sanctions available.

WHEREFORE, Respondent demands that this Court: (a) vacate the PPO as having been obtained through fraud; (b) enter judgment against Petitioner for compensatory and exemplary damages; (c) refer the matter to an investigation of perjury; and (d) award such other relief as justice requires.

COUNT V: INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS (IIED)

Against: Emily A. Watson, Albert Watson, Lori Watson, and Cody Watson

27. Respondent incorporates by reference the allegations in paragraphs 1 through 26.

28. The combined conduct of Petitioner and the Watson family members constitutes extreme and outrageous conduct that exceeds all bounds tolerated by a decent society:

- Fabricating allegations of poisoning, violence, and surveillance to obtain an ex parte order;
- Using that order to separate a father from his child for 230+ consecutive days;
- Filing serial show cause motions that resulted in 59 days of incarceration for birthday messages;
- Physically throwing court papers through a car window and ripping a child from a father's arms (Albert Watson);
- Withholding a child from a parent in violation of court orders (Emily A. Watson, Lori Watson);
- Financial manipulation through undisclosed income and documented threats (Cody Watson);
- Creating a cascade of legal proceedings designed to exhaust Respondent financially and emotionally.

29. This conduct was intentional or undertaken with reckless disregard for the probability that it would cause severe emotional distress.

30. Respondent has suffered severe emotional distress as a direct and proximate result, including but not limited to: depression, anxiety, post-traumatic stress from incarceration, loss of sleep, loss of appetite, inability to maintain employment, and the profound grief of separation from his child.

31. No reasonable person could endure having their child taken, being jailed for birthday messages, and being subjected to a sustained campaign of legal abuse without suffering severe emotional distress.

WHEREFORE, Respondent demands judgment against all named Defendants jointly and severally for compensatory damages, exemplary damages, costs, and such other relief as this Court deems just and equitable.

COUNT VI: FELONY EAVESDROPPING -- MCL 750.539c

Against: Lori Watson

32. Respondent incorporates by reference the allegations in paragraphs 1 through 31.

33. MCL 750.539c provides: "Any person who is a party to a private conversation or who is not a party to a private conversation but who willfully uses any device to eavesdrop upon the conversation without the consent of all parties thereto . . . is guilty of a felony punishable by imprisonment for not more than 2 years or a fine of not more than \$2,000.00, or both."

34. Respondent alleges upon information and belief that Lori Watson (Petitioner's mother), acting in concert with Petitioner, intercepted and/or recorded Respondent's private communications without Respondent's knowledge or consent, in violation of MCL 750.539c.

35. Michigan is a two-party consent state for the recording of private conversations. MCL 750.539c requires the consent of all parties to a private conversation before any recording, interception, or eavesdropping may occur. No consent was given by Respondent.

36. The intercepted communications were subsequently used in PPO proceedings and/or shared with Petitioner for use in the custody dispute, demonstrating that the eavesdropping was purposeful and designed to gain a tactical litigation advantage.

37. As a direct and proximate result of this felony eavesdropping, Respondent has suffered invasion of privacy, emotional distress, and the use of unlawfully obtained communications as evidence against him in judicial proceedings.

WHEREFORE, Respondent demands judgment against Lori Watson for compensatory damages, exemplary damages, costs, and referral of the matter for criminal investigation under MCL 750.539c.

COUNT VII: UNAUTHORIZED DISCLOSURE OF PROTECTED MEDICAL INFORMATION

Against: Emily A. Watson

38. Respondent incorporates by reference the allegations in paragraphs 1 through 37.

39. Respondent alleges upon information and belief that Petitioner obtained, accessed, and/or disclosed Respondent's protected medical records and health information without Respondent's authorization, violation of the Health Insurance Portability and Accountability Act of 1996 (HIPAA), 42 U.S.C. S 1320d seq., and its implementing regulations at 45 C.F.R. Parts 160 and 164.

40. Petitioner used and/or referenced Respondent's medical information in judicial proceedings -- including PPO hearings and custody proceedings -- without establishing any lawful basis for her access to those records.

41. While HIPAA does not provide a private right of action, the unauthorized access to and disclosure of medical records constitutes: (a) invasion of privacy under Michigan common law, *Doe v Mills*, 212 Mich App 73 (1995); (b) evidence of Petitioner's willingness to use unlawful means to gain litigation advantage; and (c) an independent basis for sanctions and adverse inference.

42. The unauthorized disclosure of medical records is particularly egregious in the context of this case, where Petitioner fabricated the arsenic poisoning allegation and the "meth use" claim -- false allegations that could only gain superficial credibility through selective access to and distortion of medical information.

WHEREFORE, Respondent demands: (a) judgment against Petitioner for compensatory damages for invasion of privacy; (b) an order excluding any evidence derived from unauthorized medical records access; (c) referral to the appropriate agency for investigation of HIPAA violations; and (d) such other relief as justice requires.

6. EVIDENCE INDEX

The following evidence supports the arguments and counter-claims presented in this motion. Exhibits are listed with Bates numbers where assigned. All exhibits are available for inspection and will be filed with the Court upon request or at hearing.

Exhibit	Bates No.	Description	Supports
A	PIGORS-0001	AppClose Communication Record -- Full, unedited co-parenting communications...	
B	PIGORS-0002	AppClose Psychological Analysis -- Pattern analysis of communication dynamics...	
C	PIGORS-0003	Drug Screen Results -- **NEGATIVE** -- Clean toxicology disproving substance...	
D	PIGORS-0004	HealthWest Evaluation #1 (H0002, Sept. 5, 2025) -- **ALL ZEROS** Favorable...	
E	PIGORS-0005	HealthWest Evaluation #2 -- Rule-Out Assessment SS 3.E-1(D); Rebuttal #...	
F	--	Police Report NS2505044 (Officer Ella Randall) -- Documents "meth use" statements originating...	
G	--	Hospital Records from Alleged Poisoning Incident -- No arsenic found; disproving poisoning...	
H	--	Albert Watson Incident Documentation (Oct. 20, 2024) -- Forcible child removal and punishment...	
I	--	Cody Watson Harassment -- MCSO-2024-02101 -- Sheriff's report documenting repeated harassment...	
J	--	March 26, 2024 Incident -- L.D.W. withheld from Respondent by Petitioner and L.D.W. Waived...	
K	--	Mandi Martini Email (Feb. 28, 2025, 1:05 PM) -- Court-appointed attorney silenced Respondent...	

L	--	Show Cause Disposition Records (#1-#7) -- Four of first six show causes dismissed
...		
M	--	PPO Petition (Dec. 3, 2023) -- Original petition containing fabricated allegations
...		
N	--	PPO Extension Order (Dec. 4, 2024) -- Extended without proper notice to Respondent
...		
O	--	Sentencing Transcripts (Nov. 15, 2025 & Nov. 26, 2025) -- 14 days + 45 days = 59 days
P	--	Ex Parte Custody Suspension Order (Aug. 6, 2025) -- Entered without notice
...		
Q	--	Docket -- 90-Day Hearing Delay Documentation -- 4.3x the MCR 3.207(B)(6) 21-day maximum
R	--	438-Day Co-Parenting Record -- Documentation of successful 50/50 custody prior to PPO

7. AFFIDAVIT OF ANDREW JAMES PIGORS

STATE OF MICHIGAN)

) ss.

COUNTY OF MUSKEGON)

AFFIDAVIT OF ANDREW JAMES PIGORS

I, ANDREW JAMES PIGORS, being first duly sworn, depose and state as follows:

1. I am the Respondent in the above-captioned matter. I am over 18 years of age and competent to testify to the matters stated herein. I make this affidavit based on my personal knowledge.
2. I reside at 1977 Whitehall Road, Lot 17, North Muskegon, Michigan 49445.
3. On or about December 3, 2023, Petitioner Emily A. Watson filed a petition for a Personal Protection Order against me. The PPO was issued the same day, ex parte, without notice to me and without any evidentiary hearing.
4. The PPO petition contained the following allegations, each of which I state under oath to be false:
 - a. ARSENIC POISONING: Petitioner alleged I poisoned her with arsenic. In fact, Petitioner injected herself with a substance from the household refrigerator that she stated was intended to help her lose weight. She developed a skin reaction and blamed me. No medical evidence has ever confirmed arsenic poisoning. Hospital records disprove it.

b. PHYSICAL VIOLENCE: No injuries were documented. The police report from the alleged altercation confirms no injuries and no charges were filed against me.

c. SURVEILLANCE: The alleged "surveillance device" was a baby camera -- a standard child-monitoring device used for the care of our minor child, L.D.W. I did not surveil Petitioner.

5. On October 18, 2025, I entered a guilty plea to PPO violations (CC 382a). I do not seek to withdraw that plea. However, the conduct underlying those violations consisted of sending birthday messages and other communications to my child, L.D.W., through AppClose -- a court-approved co-parenting communication application. I sent those messages out of love for my child, not to threaten, harass, or intimidate Petitioner.

6. I was sentenced to a total of 59 days in jail for these communications: 14 days at the November 15, 2025 hearing, and 45 days at the November 26, 2025 hearing.

6a. On February 28, 2025, at 1:05 PM, my court-appointed attorney, Mandi Martini, sent me an email in which she instructed me not to speak at the upcoming hearing. She stated: "You will not interrupt. Got it? I'm pretty sure Judge McNeil [sic] is not in a good mood today and she doesn't want to hear from you unless asked. I'm sure you do not want to spend the next week in jail on a contempt charge for speaking out in court when you weren't asked." She further stated: "All prosecutor is asking for today is that you get a lecture from the judge because she knows there is nothing substantive in the motion." My own court-appointed attorney acknowledged the prosecution's case was weak, yet instead of advocating for dismissal, she threatened me with contempt to silence me. At the November 15, 2025 hearing, I was muted three (3) times by the court. I possess the original email from Attorney Martini.

7. As of the date of this affidavit, I have had zero contact with Petitioner for more than 230 consecutive days. I pose no threat to Petitioner and never have.

8. The PPO has been used as a weapon to destroy my relationship with my child. I have been separated from L.D.W. for over 230 consecutive days. The PPO serves no protective purpose and

functions solely as a punitive tool in the custody dispute.

9. I have personal knowledge that Albert Watson (Petitioner's father) served PPO papers on me by throwing them through my car window during a parenting exchange, and on another occasion physically took L.D.W. from my arms during a custody exchange.
10. I have personal knowledge that L.D.W. was withheld from me on March 26, 2024, with the involvement of Petitioner and Lori Watson (Petitioner's mother).
11. I have personal knowledge that Cody Watson (Petitioner's brother) pays Petitioner's rent, which constitutes undisclosed income relevant to support calculations, and that Cody Watson has engaged in documented threats and intimidation directed at me.
12. Police Report NS2505044 (Officer Ella Randall) documents that a statement regarding "meth use" originated from Petitioner herself, not from any law enforcement finding attributed to me.
13. I have suffered severe emotional distress, loss of income, damage to my reputation, and -- most painfully -- the loss of my relationship with my child as a direct result of Petitioner's fraudulent PPO and abuse of the judicial process.
14. I have personal knowledge that the PPO strips me of my Second Amendment right to possess firearms under 18 U.S.C. S 922(g)(8). This federal firearms prohibition has been in effect since the PPO was issued on December 3, 2023, and will remain in effect for so long as the PPO continues. I am subject to federal felony prosecution for mere possession of a firearm, based on an order obtained through fabricated allegations.
15. I have personal knowledge that Petitioner or persons acting in concert with her obtained, accessed, or disclosed my protected medical records and health information without my authorization. This unauthorized access was used to support false allegations in PPO and custody proceedings.
16. I allege upon information and belief that Lori Watson (Petitioner's mother) intercepted and/or recorded my private communications without my knowledge or consent, in violation

of Michigan's felony eavesdropping statute, MCL 750.539c.

17. I swear under the penalties of perjury that the foregoing statements are true and correct to the best of my knowledge, information, and belief.

ANDREW JAMES PIGORS Date
[ANDREW: SIGN AND DATE]

Subscribed and sworn to before me
this ____ day of _____, 20____.

Notary Public, Muskegon County, Michigan
My Commission Expires: _____

8. PROPOSED ORDER

STATE OF MICHIGAN
IN THE 14TH JUDICIAL CIRCUIT COURT
FOR THE COUNTY OF MUSKEGON
FAMILY DIVISION

EMILY A. WATSON,
 Petitioner, Case No. 2023-5907-PP

 Hon. [REPLACEMENT JUDGE]

v.

ANDREW JAMES PIGORS,
 Respondent.

_____/

ORDER GRANTING RESPONDENT'S MOTION TO TERMINATE PERSONAL PROTECTION ORDER AND EXPUNGE RECORD

At a session of said Court held in the City of Muskegon,
County of Muskegon, State of Michigan, on _____, 20____.

PRESENT: HON. [REPLACEMENT JUDGE], Circuit Court Judge

The Court having considered Respondent's Motion to Terminate

Personal Protection Order, Expunge Record, and Counter-Claims for Abuse of Process, and the Court being otherwise fully advised in the premises;

IT IS HEREBY ORDERED:

1. The Personal Protection Order issued on December 3, 2023, and extended on December 4, 2024, in Case No. 2023-5907-PP, is TERMINATED effective immediately.
2. The PPO and all associated records shall be EXPUNGED from Respondent's record, including but not limited to entries in the Law Enforcement Information Network (LEIN) and any other state or federal databases.
3. The Muskegon County Clerk shall remove all references to the PPO from Respondent's record within 21 days of entry of this Order.
4. Respondent's counter-claims for abuse of process, malicious prosecution, tortious interference with parental relationship, fraud upon the court, intentional infliction of emotional distress, felony eavesdropping, and unauthorized disclosure of medical records shall proceed to [hearing/trial/discovery] as provided by the Michigan Court Rules.
5. [ALTERNATIVE: If counter-claims are adjudicated at hearing] Judgment is entered in favor of Respondent and against Petitioner on Counts _____ in the amount of \$_____.
6. This Order is effective immediately upon entry.

HON. [REPLACEMENT JUDGE]
Circuit Court Judge

Date

9. CERTIFICATE OF SERVICE

CERTIFICATE OF SERVICE

I, ANDREW JAMES PIGORS, hereby certify that on _____, 20____, I served a true and correct copy of the foregoing

RESPONDENT'S MOTION TO TERMINATE PERSONAL PROTECTION ORDER,
EXPUNGE RECORD, AND COUNTER-CLAIMS FOR ABUSE OF PROCESS,
together with all attachments and exhibits, upon the following
by [first-class U.S. mail, postage prepaid] [personal service]
[electronic service via TrueFiling]:

Emily A. Watson
2160 Garland Drive
Norton Shores, MI 49441

[If Emily retains new counsel after Jennifer Barnes withdrawal:]
[Attorney Name]
[Address]
[City, State ZIP]

14th Circuit Court Clerk
Hall of Justice
990 Terrace Street
Muskegon, MI 49442

Judicial Secretary to Hon. Jenny L. McNeill
Pamela Rusco
990 Terrace Street
Muskegon, MI 49442

ANDREW JAMES PIGORS	Date
1977 Whitehall Road, Lot 17	
North Muskegon, MI 49445	
(231) 903-5690	
andrewjpigors@gmail.com	

[ANDREW: SIGN AND DATE]

10. VERIFICATION

VERIFICATION

STATE OF MICHIGAN)

) ss.

COUNTY OF MUSKEGON)

I, ANDREW JAMES PIGORS, declare under the penalties of perjury under the laws of the State of Michigan that:

1. I am the Respondent in the above-captioned matter.
2. I have read the foregoing Motion to Terminate Personal Protection Order, Expunge Record, and Counter-Claims for Abuse of Process.
3. The factual statements contained therein are true and correct to the best of my knowledge, information, and belief.
4. The legal arguments are made in good faith and are supported by existing law or a good faith argument for the extension, modification, or reversal of existing law, as required by MCR 2.114(D).
5. This motion is not filed for any improper purpose, including harassment, unnecessary delay, or needless increase in the cost of litigation.

Executed on _____, 20__.

ANDREW JAMES PIGORS

Respondent, Pro Se

1977 Whitehall Road, Lot 17

North Muskegon, MI 49445

(231) 903-5690

andrewjpigors@gmail.com

[ANDREW: SIGN AND DATE]

APPENDIX: LEGAL AUTHORITIES CITED

Michigan Statutes

- MCL 600.2950 -- Personal Protection Orders
- MCL 600.2950(5) -- Modification and rescission of PPO
- MCL 600.2950a -- Personal Protection Orders (domestic relationship)
- MCL 722.23 -- Best-interest factors for custody determinations
- MCL 722.27 -- Custody modification procedures
- MCL 722.27a(1) -- Child's right to parenting time

- MCL 750.539c -- Felony eavesdropping (two-party consent; interception of private conversations)

Michigan Court Rules

- MCR 2.114(D) -- Signing of documents; verification
- MCR 2.203(A) -- Compulsory counterclaims
- MCR 2.612(C)(1)(c) -- Relief from judgment for fraud, misrepresentation, or misconduct
- MCR 3.207(B)(1) -- Ex parte orders; specific facts requirement
- MCR 3.207(B)(6) -- Ex parte orders; 21-day hearing requirement
- MCR 3.704 -- Personal Protection Orders (scope, purpose, and limitations) (January 2026 MCR amendments)
- MCR 3.706(D) -- PPO hearings; respondent's right to present evidence and cross-examine witnesses (January 2026 MCR amendments)
- MCR 3.707 -- Personal protection order proceedings; modification and termination
- MCR 3.707(A)(2) -- Termination of PPO upon showing of changed circumstances
- MCR 3.708 -- Contempt proceedings for PPO violations; hearing requirements
- MCR 3.708(D), (F) -- Contempt procedures; burden of proof; procedural protections before incarceration (January 2026 MCR amendments)
- MCR 3.715 -- Modification of Personal Protection Orders (January 2026 MCR amendments)
- MCR 3.716 -- Extension of Personal Protection Orders (January 2026 MCR amendments)
- MCR 3.717 -- Termination of Personal Protection Orders (January 2026 MCR amendments)
- MCR 3.718 -- Procedures for PPO Modification, Extension, and Termination (January 2026 MCR amendments)

Michigan Case Law

- Doe v Mills, 212 Mich App 73 (1995) -- Invasion of privacy under Michigan common law
- Friedman v Dozor, 412 Mich 1 (1981) -- Abuse of process elements
- Hayford v Hayford, 279 Mich App 324 (2008) -- PPO requirements and standards
- Hunter v Hunter, 484 Mich 247 (2009) -- PPO cannot substitute for custody modification
- In re Certified Question (Bankey v. Storer Broadcasting), 432 Mich 438 (1989) -- Absurd statutory results
- In re Contempt of Henry, 282 Mich App 656 (2009) -- Criminal contempt for PPO violation requires proof beyond a reasonable doubt
- Matthews v Blue Cross & Blue Shield of Michigan, 456 Mich 365 (1998) -- Malicious prosecution elements
- People v. Likine, 492 Mich 367 (2012) -- Guilty plea scope
- Pickering v Pickering, 253 Mich App 694 (2002) -- PPO standard of review; reasonable apprehension requirement
- White v White, 212 Mich App 298 (1995) -- Willful PPO violation requirement

Federal Statutes

- 18 U.S.C. S 922(g)(8) -- Prohibition on firearms possession by persons subject to domestic PPO
- 18 U.S.C. S 922(g)(8)(C)(ii) -- Credible threat finding requirement for firearms prohibition
- 42 U.S.C. S 1320d et seq. -- Health Insurance Portability and Accountability Act (HIPAA)

- 45 C.F.R. Parts 160 and 164 -- HIPAA implementing regulations

Federal Case Law

- Boddie v Connecticut, 401 U.S. 371 (1971) -- Filing bonds as unconstitutional barrier to court access
- Meyer v Nebraska, 262 U.S. 390 (1923) -- Fundamental parental liberty interest
- Pierce v Society of Sisters, 268 U.S. 510 (1925) -- Parental rights as fundamental liberty
- Strickland v. Washington, 466 U.S. 668 (1984) -- Ineffective assistance of counsel; two-prong test (deficient performance + prejudice)
- Troxel v Granville, 530 US 57 (2000) -- Fundamental parental rights; oldest liberty interest
- United States v. Rahimi, 602 U.S. 680 (2024) -- Constitutionality of S 922(g)(8); "credible threat" emphasis
- Village of Willowbrook v Olech, 528 U.S. 562 (2000) -- Class-of-one equal protection claim

Michigan Constitution

- Const 1963, art 1, S 2 -- Equal protection
- Const 1963, art 1, S 17 -- Due process

Respectfully submitted,

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